

3.	30-2024-01381598	1. Motion to Strike or Tax Costs
	Flores vs. FCA US, LLC	Plaintiff Danielle Flores moves to tax certain costs claimed by defendant FCA US, LLC on the ground that the challenged costs were not reasonably necessary to the conduct of the litigation and are not recoverable. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) Items not mentioned in section 1033.5 may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5(c)(4).) "If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the plaintiff." (<i>Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co.</i> (1963) 217 Cal.App.2d 678, 698.) "The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation.] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable." (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131.) <u>Item 11 - Court Reporter Fees</u> Plaintiff seeks to tax \$13,414.00 in court reporter fees claimed by Defendant across seven reported sessions. Plaintiff argues these fees should be taxed because Defendant has attached no invoices, no court reporter receipts, and no declarations establishing that any of these seven sessions were court-ordered or otherwise satisfy the "as established by statute" requirement. Further, two entries list the same reporter on the same date, November 4, 2025, but no court proceeding took place on that date. Court reporter fees as established by statute are allowable as costs. (Code Civ. Proc., § 1033.5(a)(11).) Fees and charges of a certified shorthand reporter are recoverable as taxable costs by a prevailing party as otherwise provided by law. (Gov. Code, § 68086(d)(2).) Thus, these costs are recoverable by Defendant as the prevailing party here. Defendant appeared on November 3, 2025 at the trailed trial hearing and at a hearing on Plaintiff's Ex Parte Application to Continue Trial. There were no proceedings on November 4 or 5. The invoices attached to Defendant's opposition include \$1,390 in court reporting fees for a job on November 5, \$1,295 for a job on November 3, and \$1,295 for a job on November 4. While it is possible that the invoice referencing November 4 may have a typo and it actually correlates to one of the appearances made on November 3, Defendant provides no explanation as to the November 5 court reporter fees. Because there were no court proceedings on that date, the Court finds that this line item should be taxed. Thus, the Motion to Tax as to <u>Item 11</u> is GRANTED in the amount of \$1,390. The Motion is DENIED as to the remaining court reporter fees. <u>Item 14 - Electronic Filing Fees</u> Plaintiff seeks to tax \$1,140.68 in electronic filing fees because Defendant has submitted no invoices, no itemized billing records, and no documentation of any kind in support of the \$1,140.68 figure. Plaintiff argues that vendor service fees, processing surcharges, and convenience fees are not court-imposed and not recoverable under section 1033.5(a)(14) and Defendant has included charges for filings that are not reasonably necessary to the litigation such as association of counsel notices, errata filings, and change of address notifications.

“Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” (Code Civ. Proc., § 1033.5(a)(14).) Here, as Defendant points out, the Court requires electronic filing by represented parties. Thus, the filing service fees claimed by Defendant are recoverable. Further, filings such as notices of association of counsel, notices of errata, and notices of change of address are reasonably necessary to the litigation. Thus, the Motion to Tax as to Item 14 is **DENIED**.

Item 15 - Other

Plaintiff seeks to tax \$150.15 in "Other" costs under Line 15 on the ground that Defendant has not shown that these discretionary costs were both reasonably necessary and reasonable in amount and parking, mileage reimbursement, meals, CARFAX vehicle history reports (three separate charges), and document retrieval are not recoverable Code of Civil Procedure section 1033.5(b)(2).

Plaintiff’s argument that section 1033.5(b)(2) expressly precludes costs for travel expenses of attorneys, parking, or meals is incorrect. Section 1033.5(b)(2) precludes “[i]nvestigation expenses in preparing the case for trial.”

While section 1033.5(b)(2) does not preclude travel or parking costs, it does preclude the CARFAX costs, which Defendant concedes were “investigative costs.”

Further, while Plaintiff erroneously cited to section 1033.5(b)(2) for the incorrect proposition, Plaintiff is correct that attorney meal costs and local travel costs are generally not recoverable. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 [“The only meal expenses statutorily allowable are those for jurors while they are kept together during trial and deliberation.”]; *id.* at p. 775 [“Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation.”].)

Thus, the Motion to Tax as to Item 15 is **GRANTED** as to the claimed mile reimbursement, meal, parking, and CARFAX costs. The Motion is **DENIED** as to the remaining other costs.

Moving party to give notice.

5. 30-2025-01527897

209 Group, LLC vs.
Seibert

1. Case Management Conference
2. Motion for Leave to File Amended Cross-Complaint

Defendants Christian Seibert, Osmar Aguilar, and Eisley Creative LLC, hereby respectfully seek this Court’s leave to file a Cross Complaint against Plaintiffs 209 Group, LLC, Novation Productions, LLC and additional party Tom Armbruster.

MP cites to CCP§428.50 as the enabling authority for the relief requested.

Code Civ. Proc., § 428.50

- (a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.
- (b) Any other cross-complaint may be filed at any time before the court has set a date for the trial.
- (c) A party shall obtain leave of court to file any cross-complaint except one filed within time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.